

Firm No. 108

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2007s-4

**UNITED STATES DISTRICT COURT
NORTHERN DISTRICT OF ILLINOIS
EASTERN DIVISION**

DARLENE SCANLAN,

Plaintiff,

v.

UNITED STATES OF AMERICA,

Defendants.

FILED: JULY 10, 2008

08CV3930

No. **JUDGE MANNING**

MAGISTRATE JUDGE DENLOW

AEE

COMPLAINT AT LAW

Plaintiff, DARLENE SCANLAN, by and through her attorneys, CORBOY & DEMETRIO, complaining of defendant, UNITED STATES OF AMERICA, states as follows:

Federal Torts Claim Act

1. This action is brought pursuant to the Federal Tort Claim Act, 28 U.S.C., §2671 et seq.
2. On and before December 12, 2006, South Pulaski Road was a publicly traveled highway running in a north/south direction which intersected with West 66th Street, which ran in an east/west direction in Chicago, Cook County, Illinois.
3. On December 12, 2006, plaintiff, DARLENE SCANLAN, a pedestrian, was in the process of crossing South Pulaski Road from east to west at the aforesaid intersection with West 66th Street.
4. On December 12, 2006, John Kupiec owned and operated, managed, maintained and controlled a motor vehicle westbound on West 66th Street approaching its intersection with South Pulaski Road.

5. At the time and place aforesaid, JOHN KUPIEC, was an employee of the Defendant, United States Postal Service, and at all relevant times herein, was acting within the scope of his employment as a duly authorized agent of defendant, United States Postal Service.

6. At the time and place aforesaid, as the vehicle operated by defendant, JOHN KUPIEC was in the process of making a left turn to proceed north on South Pulaski Road, it came into contact with the plaintiff, DARLENE SCANLAN.

7. At the time and place aforesaid, defendant, United States of America, through the acts and/or omissions of its employee, was negligent in one or more of the following ways:

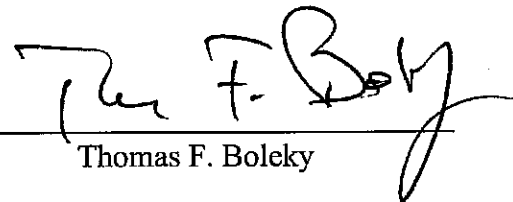
- a. Operated his motor vehicle without keeping a proper and sufficient lookout;
- b. Failed to yield to the right-of-way to the plaintiff, a pedestrian, within a crosswalk, in violation of Illinois Compiled Statutes, 2006, Chapter 625, Section 5/11-1002;
- c. Failed to exercise due care to avoid colliding with plaintiff, a pedestrian upon a roadway, and failed to stop to give warning by sounding horn, in violation of Illinois Compiled Statutes, 2006, Chapter 625, Section 5/11-1003.1;
- d. Failed to give audible warning with his horn when such warning was reasonably necessary to insure safety, in violation of Illinois Compiled Statutes, 2006, Chapter 625, Section 5/12-601;
- e. Proceeded at a speed which was greater than reasonable and proper with regard to traffic conditions and the use of the highway, or which endangered the safety of persons or property, in violation of Illinois Compiled Statutes, 2006, Chapter 625, Section 5/11-601; and/or
- f. Failed to drive vehicle as nearly as practicable entirely within a single lane before turning left onto South Pulaski Road, in violation of Illinois Compiled Statutes, 2006, Chapter 625, Section 5/11-709.

8. As a proximate result of one or more of the foregoing negligent acts or omissions by defendants, plaintiff, DARLENE SCANLAN, sustained injuries of a personal and pecuniary nature.

9. On November 2, 2007, plaintiff served upon the United States Postal Service, a Form 95 Claim for Damage, Injury or Death.

10. On June 2, 2008, the claim was denied by the passage of six months time, pursuant to 28 U.S.C. §2675.

WHEREFORE, plaintiff, DARLENE SCANLAN, demands judgment against defendant, UNITED STATES OF AMERICA, in an amount of \$500,000.00.


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Firm I.D. No. 108